

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 10
Honorable Frederick S. Chung**

Rachel Tien, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: July 30, 2024 TIME: 9:00 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court 3.1308(a)(1) and Local Rule 8.E.

LINE #	CASE #	CASE TITLE	RULING
LINE 1	19CV341404	Ian Masloff v. JMA Enterprises, LLC et al.	Order of examination: <u>parties to appear</u> .
LINE 2	22CV398536	Roger Darren Coit et al. v. NBK Investment, LLC et al.	Click on LINE 2 or scroll down for ruling.
LINE 3	23CV426650	Ankur Rustagi et al. v. Matthew David Wheeler et al.	Click on LINE 3 or scroll down for ruling.
LINE 4	23CV427933	Debra Ryan et al. v. AAA et al.	Click on LINE 4 or scroll down for ruling.
LINE 5	20CV366393	N.R. Waterloo, LLC v. Dennis Treadaway et al.	This motion has been continued by ex parte order to October 31, 2024 at 9:00 a.m.
LINE 6	21CV381806	Claudia Barrera Roque et al. v. Stucco Supply Co. et al.	Click on LINE 6 or scroll down for ruling.
LINE 7	22CV393755	Joyce Diaz v. General Motors, LLC	Click on LINE 7 or scroll down for ruling.
LINE 8	23CV418929	Sophie Yeh v. The Harker School et al.	Click on LINE 8 or scroll down for ruling.
LINE 9	23CV427742	Anthony Moran v. FCA US, LLC et al.	This matter is OFF CALENDAR, in light of the notice of settlement filed by plaintiff.

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Calendar Line 2

Case Name: *Roger Darren Coit et al. v. NBK Investment, LLC et al.*

Case No.: 22CV398536

Plaintiffs Roger Darren Coit and Sarah Ramsay Coit (the “Coits”) filed this action against defendants NBK Investments, LLC; LU Construction and Design Group, Inc.; Mor Liberty; and ADU by Luxury Construction, Inc. (collectively, “Defendants”), based on Defendants’ alleged conduct regarding the construction and sale of real property in California. Defendants now demur to the second, third, fourth, fifth, sixth, seventh, and ninth causes of action in the Coits’ First Amended Complaint (“FAC”).

I. BACKGROUND

According to the FAC, NBK Investments, LLC (“NBK”) purchased 1985 Hicks Avenue, San Jose, California, 95125 (the “Property”) on July 19, 2018. (FAC, ¶ 21.) NBK thereafter hired LU Construction and Design Group, Inc. (“LU”) as the general contractor to build a new home on the Property. (*Id.* at ¶ 22.) On or about May 11, 2020, the Coits purchased the Property from NBK through a written California Residential Purchase Agreement (the “Contract”). (*Id.* at ¶ 23.) Mor Liberty (“Liberty”), who signed the Contract on behalf of NBK, allegedly hid his relationship with LU from the Coits. (*Id.* at ¶ 24.) The Coits allege that the Property contained various construction defects and deficiencies. (*Id.* at ¶ 26.) NBK also allegedly made various misrepresentations, including the Property’s exact square footage and that the Property would include all new appliances. (*Id.* at ¶ 27.) In addition, LU built the front yard fence and mechanical gate on land owned by the City of San Jose rather than within the correct property line. (*Id.* at ¶ 28.) The Coits notified NBK of these issues immediately, but NBK has failed and refused to address the issues. (*Id.* at ¶ 29.)

On May 20, 2022, the Coits filed their original complaint. The Coits filed a FAC on October 11, 2023, alleging causes of action for: (1) breach of written contract; (2) breach of the covenant of good faith and fair dealing; (3) negligence; (4) breach of implied warranty; (5) breach of express warranty; (6) intentional misrepresentation; (7) negligent misrepresentation; (8) strict liability; and (9) declaratory relief.

II. REQUEST FOR JUDICIAL NOTICE

Defendants have submitted a request for judicial notice with their demurrer. “Judicial notice may not be taken of any matter unless authorized or required by law.” (Evid. Code, § 450.) A precondition to judicial notice in either its permissive or mandatory forms is that the matter to be noticed be relevant to the material issue before the court. (*Silverado Modjeska Recreation and Park Dist. v. County of Orange* (2011) 197 Cal.App.4th 282, 307, fn. 18, citing *People v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422, fn. 2].) It is the court, and not the parties, that determines relevance. Evidence Code section 453, subdivision (b), requires a party seeking notice to “[furnish] the court with sufficient information to enable it to take judicial notice of the matter.”

Defendants request that the court take judicial notice of facts included in the FAC and in Exhibit A to the Request for Judicial Notice. (Defendants’ Request for Judicial Notice (“RJN”), pp. 1-2.)